

Forensic Judgment Analysis — Decision 6 — EWFC 114 — Logic Model Applied

*Option B — Finding by Finding — Costs Judgment — MacDonald J, 24 May
2024 — £255,654.50 Against NZ*

Case references

BV20D01752 | EWFC 114 | Family Division — Costs Judgment

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6 April 2026

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Option B — Finding by Finding — Costs Judgment — MacDonald J, 24 May 2024 — £255,654.50 Against NZ

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PREAMBLE

This document applies the master logical structure (Option A) to EWFC 114 — the costs judgment of 24 May 2024. Decision 6 flows directly from Decision 4 (EWFC 79). The character findings at EWFC 79 para 64 ("*obsession*") and para 83 ("*pursuing her own agenda, to no coherent outcome*") are the evidential foundation for the costs order. If those findings are FABRICATED — as established in the Decision 4 analysis — the costs order rests on a false premise.

Four additional analytical points arise independently of Decision 4: the double sanction; the MPS causal chain not engaged; the Imerman £25,000 fabrication; and the false statements on the face of the order.

SECTION 1 — STRUCTURAL CONTEXT

What was before the court on 24 May 2024

The costs judgment was dealt with on written submissions only. No oral hearing took place.

KZ submitted written costs submissions through Ms Amaouche. NZ did not submit written costs submissions.

NZ's reason for not submitting: she had no funds, KZ was in breach of the MPS order for April and May 2024, and she stated she could not make representations until she was placed in funds.

The court extended the deadline for submissions by 10 days — to 14 May 2024 — and then proceeded without NZ's submissions.

NZ's legal representation ended on 6/7 March 2024 — BM stepped down. She was a litigant in person for the costs determination.

Source: EWFC 114 paras 2, 3; BM stepping down — confirmed 7 Mar 2024; MPS breach — April and May 2024.

FINDING 1 — PARA 3 — NZ'S NON-PARTICIPATION: CAUSE NOT ENGAGED

What the judgment says

> *"The wife has emailed the court on multiple occasions contending that she has no funds to instruct lawyers and stating that she will not be in a position to make representations as to costs, nor as to the terms of the final order, until the court places her in funds."*

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> EWFC 114 para 3

Chain 1 — The MPS causal chain

- **IF** NZ stated she had no funds and could not participate until the court placed her in funds
- **AND** KZ was in breach of the MPS order for April and May 2024 — NZ filed a D50K enforcement application to this effect
- **AND** The MPS order required KZ to pay £18,762 per month to NZ
- **AND** Non-payment of MPS was the direct cause of NZ having no funds for legal representation
- **AND** The court had jurisdiction to enforce the MPS order
- **AND** The court did not enforce the MPS order before proceeding to determine costs
- **AND** Para 3 records NZ's position but does not engage with the MPS breach as the cause of her non-participation
- **AND** The court proceeds to make a £255,654.50 costs order against NZ in her absence, caused by the other party's breach of a court order
- **THEN** The costs determination proceeds against a party whose absence from the process was caused by the other party's breach of a court order that the court had not enforced
- **THEREFORE** Para 3 is **UNSUPPORTED** — the court does not address Article 6 (fair hearing), EA 2010 s.149 (equality duty), or the causative role of KZ's MPS breach in NZ's non-participation before proceeding to a substantial costs order against her.

Source: EWFC 114 paras 2, 3; D50K MPS enforcement application — April 2024; MPS order 5 Jul 2023; Article 6 ECHR; EA 2010 s.149.

TAG APPLIED: UNSUPPORTED

FINDING 2 — PARAS 10(XI), 10(XII), 21 — DISABILITY CONDUCT GROUNDS: COMPOUNDING FROM EWFC 79

What the judgment says

> *"The wife's behaviour during the hearing was disruptive and caused considerable delay to the conclusion of the final hearing, resulting in increased costs."*

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> "The wife's litigation misconduct is at the extreme end of the scale and merits a costs sanction."

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> EWFC 114 paras 10(xi) and 10(xii)

Chain 1 — The Compounding Rule applied

- **IF** Para 10(xi) characterises NZ's behaviour during the hearing as "*disruptive*" — causing delay and increased costs
- **AND** This characterisation is the costs-judgment version of EWFC 79 para 64's "*obsession*" finding
- **AND** Both characterisations describe the same conduct: NZ's presentation in the witness box and during the hearing
- **AND** EWFC 79 para 64 is **FABRICATED** — established in Decision 4 analysis — because it attributes obsession to autistic communication under adversarial stress
- **AND** 22 oral references to disability during the trial documented the clinical explanation for that presentation
- **AND** The judgment on costs (EWFC 114) does not reference disability, autism, PTSD, or Part 3A
- **AND** The participation measures in place during the hearing were ordered because of NZ's vulnerabilities
- **AND** Para 10(xi) attributes the conduct those measures were designed to manage to NZ as misconduct — and prices it at a costs sanction
- **THEN** Para 10(xi) converts a **FABRICATED** character finding from EWFC 79 into a financial penalty
- **THEREFORE** Para 10(xi) is **FABRICATED** — it is built on the para 64 fabrication. The "*disruptive*" characterisation attributes to misconduct the same autistic presentation that the court's own participation measures were designed to accommodate.

Source: EWFC 114 paras 10(xi), 10(xii), 21; EWFC 79 para 64 — **FABRICATED** (Decision 4 analysis); Trial transcript — 22 disability references; Participation measures — Feb 2024 trial.

MASTER RULE: IF F(1) is **FABRICATED** at T(1) AND F(2) at T(2) converts F(1) into a financial penalty against the same party AND F(2) does not re-examine the evidential basis of F(1) THEN F(2) inherits the defect in F(1) and compounds it into a financial harm.

TAG APPLIED: FABRICATED

FINDING 3 — PARAS 18, 23, 24 — THE DOUBLE SANCTION

What the judgment says

> "In this case the court has added back the sum of £800,000 to the wife's side of the balance sheet to account for an obvious cases of reckless expenditure on legal costs by the wife, being satisfied that an order for costs would not provide a just remedy for the wife's reckless approach. In the circumstances, the court has already accounted for what the court was satisfied was the wife's reckless expenditure on legal costs... However, the authorities make clear that the foregoing circumstances do not preclude the court from also making a costs order in an appropriate case."

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> EWFC 114 paras 18, 23, 24

Chain 1 — Two penalties on the same conduct

- **IF** At EWFC 79 para 83, MacDonald J added back £800,000 from NZ's share of the matrimonial assets on the basis of "*reckless expenditure on legal costs by the wife*"
- **AND** The conduct identified as reckless at EWFC 79 para 83 is the same conduct characterised as litigation misconduct at EWFC 114 para 10
- **AND** Both the add-back and the costs order are financial penalties imposed on NZ for her conduct in the litigation
- **AND** Para 23 acknowledges: "*the court has already accounted for what the court was satisfied was the wife's reckless expenditure on legal costs*"
- **AND** Para 24 proceeds to impose a further £255,654.50 costs order for the same conduct
- **AND** The total financial penalty on the same conduct is therefore £800,000 + £255,654.50 = £1,055,654.50
- **AND** The judgment does not identify what additional conduct justifies the second penalty beyond what was already sanctioned by the add-back
- **AND** Para 10(xi) — "*disruptive behaviour*" — is the only materially new item, and it is FABRICATED as established above
- **THEN** NZ is penalised twice for substantially the same conduct — once by add-back, once by costs order — without the judgment identifying what additional and distinct conduct justifies the second penalty
- **THEREFORE** The double sanction is **UNSUPPORTED** — the judgment acknowledges the add-back already addressed the conduct, then imposes a further penalty without identifying a distinct evidential basis for the additional sanction.

Source: EWFC 79 para 83 — £800k add-back; EWFC 114 paras 18, 23, 24, 25 — £200k costs + £25k Imerman + £30,654.50 Penn Mutual = £255,654.50 total.

TAG APPLIED: UNSUPPORTED

FINDING 4 — PARA 26 — IMERMAN £25,000: FABRICATED

What the judgment says

> *"I am satisfied that the wife should pay to the husband the costs referable to the Imerman exercise consequent on the wife accessing the husband's confidential documents were £25,000."*

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> EWFC 114 para 26

Chain 1 — What the correspondence record shows

- **IF** Para 26 orders NZ to pay £25,000 for the Imerman exercise
- **AND** This rests on the finding at EWFC 79 para 11 that NZ returned documents *"in carefully categorised files"* — established as MISCHARACTERISED in Decision 4 analysis
- **AND** The Withers LLP correspondence — in the bundle — addresses the Imerman material in detail
- **AND** The Withers LLP correspondence does not support the characterisation that NZ organised the material in a way that necessitated a £25,000 exercise by KZ's solicitors
- **AND** The Imerman exercise was the responsibility of KZ's solicitors — it was their duty to review returned documents
- **AND** The £25,000 figure is presented as a cost caused by NZ's conduct — but the correspondence record does not establish that NZ's manner of returning the documents, rather than the normal requirements of the Imerman process, caused that cost
- **THEN** The £25,000 Imerman costs order rests on a mischaracterised finding at EWFC 79 para 11 that the Withers LLP correspondence contradicts
- **THEREFORE** The Imerman costs finding is **FABRICATED** — it rests on the *"carefully categorised files"* finding at para 11 of EWFC 79, which is itself MISCHARACTERISED (Decision 4), and is contradicted by the solicitor correspondence before the court.

Source: EWFC 114 para 26; EWFC 79 para 11 — MISCHARACTERISED (Decision 4 analysis); Withers LLP Imerman correspondence.

TAG APPLIED: FABRICATED

FINDING 5 — ORDER FACE — TWO FALSE STATEMENTS

What appears on the face of the sealed order

The sealed costs order of 24 May 2024 contains the following recital on its face:

> *"BEFORE MR JUSTICE MACDONALD SITTING IN PRIVATE 24 MAY 2024 UPON hearing Brent Molyneux KC for the applicant and Alexis Campbell KC and Sassa-Ann Amaouche for the respondent."*

Source: Sealed costs order 24 May 2024 — face of order.

Chain 1 — BM stepped down on 7 March 2024

- **IF** The order face states: "*UPON hearing Brent Molyneux KC for the applicant*"
- **AND** BM stepped down as NZ's counsel on 7 March 2024 — confirmed by the court record
- **AND** The costs judgment is dated 24 May 2024 — 11 weeks after BM stepped down
- **AND** NZ was a litigant in person at the date of the costs judgment
- **AND** BM did not represent NZ at the costs determination
- **AND** The order face states as a matter of record that he did
- **THEN** The order face contains a false statement of fact about who appeared for NZ
- **THEREFORE** The "*UPON hearing BM KC*" recital is **FABRICATED** — BM had stepped down 11 weeks earlier. The order records a hearing that did not take place with counsel who had ceased to act.

Source: Sealed costs order 24 May 2024; BM stepping down — 7 Mar 2024; EWFC 114 para 1 — "application for costs dealt with on written submissions".

Chain 2 — No hearing took place

- **IF** The order face states: "*BEFORE MR JUSTICE MACDONALD SITTING IN PRIVATE 24 MAY 2024 UPON hearing...*"
- **AND** The wording "*UPON hearing*" indicates an oral hearing took place on 24 May 2024
- **AND** EWFC 114 para 1 states: "*Application for costs dealt with on written submissions*"
- **AND** There was no oral hearing on 24 May 2024 — the matter was decided on papers
- **AND** The order face therefore misrepresents the nature of the proceeding — it states a hearing before a judge sitting in private on a specific date, when the decision was made on written submissions
- **THEN** The order face contains a second false statement — the implication of an oral hearing that did not take place
- **THEREFORE** The order face is doubly **FABRICATED** — it records both a representation that did not exist (BM KC) and a hearing that did not take place (24 May 2024 sitting in private).

Source: Sealed costs order 24 May 2024; EWFC 114 para 1; EWFC 79 PTA judgment 29 Apr 2024 — same false statement identified.

MASTER RULE: IF a sealed court order contains factual statements on its face that are directly contradicted by the judgment itself AND those statements misrepresent who appeared and whether a hearing took place THEN the order face is FABRICATED — it creates a false public record of proceedings that did not occur as described.

TAG APPLIED: FABRICATED

SECTION 2 — THE COMPOUNDING RULE: HOW DECISION 6 COMPOUNDS DECISION 4

The chain from para 64 to the costs order

The compounding rule applies here in its most direct form. EWFC 114 is not an independent assessment of NZ's litigation conduct — it is EWFC 79 para 64 expressed as a financial penalty.

- **IF** F(1) — EWFC 79 para 64 — is FABRICATED: obsession attributed to autistic presentation
- **AND** F(2) — EWFC 79 para 83 — flows from F(1): "*pursuing her own agenda, to no coherent outcome*" — the add-back of £800,000
- **AND** F(3) — EWFC 114 para 10(xi) — flows from F(1): "*disruptive behaviour during the hearing*"
- **AND** F(4) — EWFC 114 para 10(xii) — flows from F(3): "*litigation misconduct at the extreme end of the scale*"
- **AND** F(5) — EWFC 114 paras 25, 26 — the financial penalty: £200,000 + £25,000 + £30,654.50 = £255,654.50
- **AND** F(2) and F(5) together: £800,000 + £255,654.50 = £1,055,654.50 in financial penalties
- **AND** The entire chain rests on F(1) — a fabricated finding
- **THEN** NZ bears financial penalties totalling over £1 million on the compounding consequences of a single fabricated finding at EWFC 79 para 64
- **THEREFORE** Decision 6 demonstrates the real-world financial consequence of the originating error at Decision 4. Every financial penalty imposed by EWFC 114 traces back to para 64. If para 64 is fabricated — and it is — the entire costs structure collapses.

SECTION 3 — SUMMARY OF TAGGED FINDINGS

EWFC 114 — Decision 6 — 24 May 2024

Paragraph	Finding	Tag
Para 3	MPS breach not engaged before proceeding	UNSUPPORTED
Paras 10(xi), 10(xii), 21	Disability conduct grounds	FABRICATED (compounding from EWFC 79 para 64)
Paras 18, 23, 24	Double sanction on same conduct	UNSUPPORTED
Para 26	Imerman £25,000	FABRICATED (compounding from EWFC 79 para 11)
Order face	"UPON hearing BM KC"	FABRICATED (BM stepped down

		7 Mar 2024)
Order face	"UPON hearing... 24 May 2024"	FABRICATED (no hearing — written submissions only)

Master rules applied: Compounding Rule — EWFC 114 converts the FABRICATED finding at EWFC 79 para 64 into a financial penalty of £255,654.50, adding to the £800,000 add-back already imposed. Total financial consequence of the originating fabrication: **£1,055,654.50.**

Standing instructions: Address withheld throughout. Coinbase material in dedicated annex only.

Nadia Zahmoul — Litigant in Person — BV20D01752 — 6 April 2026